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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved on	Pronounced on
29.09.2026	09.10.2026

CORAM

THE HONOURABLE MR. JUSTICE M.DHANDAPANI
AND
THE HONOURABLE MR. JUSTICE N.DILIPKUMAR

W.P. (MD) NO. 21648 OF 2023
CNR:{HCMD010995522023}

W.P. (MD) NO. 5160 OF 2024
CNR : {HCMD010130142024}

W.P. (MD) NO. 2871 OF 2024
CNR : {HCMD010136892024}

W.P. (MD) NO. 18824 OF 2024
CNR : {HCMD010775292024}

W.P. (MD) NO. 20281 OF 2024
CNR : {HCMD010886992024}

AND

W.M.P. (MD) NOS. 18054, 18055 OF 2023
W.M.P. (MD) NOS. 4945, 4946, 2881, 2883, 2885, 17205, 15922, 15923 OF 2024

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W.P. NO.21648 OF 2023

Tmt. Anusha .. Petitioner

- Vs -

1. The Union of India
   Thro' its Secretary to Government
   Department of Water Sources River
   Development and Ganga Rejuvenation
   Shram Shakthi Bhavan
   New Delhi 110 001.

2. National Water Development Agency
   Thro' its Director General
   18-20, Community Centre, Saket
   New Delhi 110 017.

3. The State of Tamil Nadu
   Thro' its Prl. Secretary to Government
   Public Works Department (Water Resources
   Organisation), Fort St. George
   Chennai 600 009.

4. The District Collector
   Karur District, Karur.

5. The Special District Revenue Officer
   (Land Acquisition)
   CVG Link Canal Project, Karur. .. Respondents
   (RR-1 & 2 deleted vide order of
   Court dated 14.3.2024 in the WPs)

W.P. NO. 18824 OF 2024

Karthika V Laxmi .. Petitioner

- Vs –

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1. The Union of India
   Through its Secretary to Government
   Department of Water Sources River Development
   and Ganga Rejuvenation,
   Shram Shakthi Bhavan,
   New Delhi – 110001.

2. National Water Development Agency
   Through its Director General,
   18-20, Community Centre,
   Saket, New Delhi – 110017.

3. The State of Tamil Nadu
   Through its Principal Secretary to Government,
   Public Works Department (Water Resources Organization),
   Fort St. George,
   Chennai – 600009.

4. The District Collector
   Karur District, Karur.

5. The Special District Revenue Officer (Land Acquisition)
   CVG Link Canal Project, Karur.

6. The Special Tahsildar (Land Acquisition)
   CVG Link Canal Project,
   Kulithalai, Karur District. .. Respondents
   (R1 deleted vide order of Court dated
   27.03.2025 in WP (MD) No.4351/2019)

W.P. NO. 2817 OF 2024

1. Pitchai
2. Ramasamy .. Petitioners

- Vs –

1. The Union of India
   Through its Secretary to Government

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Department of Water Sources River Development
and Ganga Rejuvenation,
Shram Shakthi Bhavan,
New Delhi – 110001.

2. National Water Development Agency
Through its Director General,
18-20, Community Centre,
Saket, New Delhi – 110017.

3. The State of Tamil Nadu
Through its Principal Secretary to Government,
Public Works Department (Water Resources Organization),
Fort St. George, Chennai – 600009.

4. The District Collector
Karur District, Karur.

5. The Special District Revenue Officer (Land Acquisition)
CVG Link Canal Project, Karur.

6. The Special Tahsildar (Land Acquisition)
CVG Link Canal Project,
Kulithalai, Karur District. .. Respondents
(RR-1 & 2 deleted vide Court order
dated 14.03.2024 in WP(MD) 21648/23 &
27984, 27985 & 2871/2024)

W.P. NO. 20281 OF 2024

Sethupathy .. Petitioner

- Vs -

1. The Additional Secretary
Revenue, Land and Disaster
Management Department
Govt. Tamilnadu, Chennai.

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2. The Commissioner of Land Administration
   Commissionerate of Land Administration
   Chepauk, Chennai.

3. The District Collector
   Karur District, Karur.

4. The Special District Revenue Officer
   Land Acquisition, Cauvery-Vaigai-Gundaru
   Special Project, Karur.

5. The Special Tahsildar (LA) Unit II
   Cauvery-Vaigai-Gundaru
   Link Canal Special Project, Kulithalai
   Karur District. .. Respondents

W.P. NO. 5160 OF 2024

V. Sridhar .. Petitioner

- Vs –

1. District Collector
   Pudukottai District
   Pudukottai.

2. The Executive Engineer
   Water Resources Department/WRO
   Special Project Division (CVG Link Project)
   Pudukottai.

3. The Special District Revenue Officer (Land Acquisition)
   Cauvery-Vaigai-Gundar Link Project
   District Collectorate
   Pudukottai, Pudukottai District.

4. The Special Thasildar (Land Acquisition)

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Unit-2, Cauvery-Vaigai-Gundar Link Project
Keeranur, Pudukottai District.

5. The Chief Engineer
National Water Development Agency (NWDA)
18-20, Community Centre
Government of India
Saket, New Delhi – 110 017. .. Respondents

W.P. (MD) No.21648 of 2023 filed under Article 226 of the Constitution of India praying this Court to issue a writ of certiorari to call for the records relating to impugned G.O. Ms. No.169, Water Resources (K1) Department, dated 26.11.2021 and Na.Ka. No.A1/270/2022 dated 07.03.2022, as published by the 4th respondent in the Karur District Gazette vide No.16 dated 08.03.2022 issued in Form IV u/s 13 (1) of Right to Fair Compensation and Transparency in Land Acquisition Rehabilitation and Resettlement Act, 2013 and the consequential proceedings Na.Ka. No.A1/717/2022 dated 17.06.2022 issued by the 4th respondent herein and quash the same as illegal and arbitrary.

W.P. (MD) No.2871 of 2024 filed under Article 226 of the Constitution of India praying this Court to issue a writ of certiorari to call for the records relating to impugned G.O. Ms. No.169, Water Resources (K1) Department, dated 26.11.2021 and Na.Ka. No.A1/408/2022 dated 18.03.2022, as published by the 4th respondent in Daily newspaper publication in Dhinathanthi dated 23.03.2022 issued in Form IV u/s 13 (1) of Right to Fair Compensation and Transparency in Land Acquisition Rehabilitation and Resettlement Act, 2013 and consequential final compensation award passed by the 5th respondent in Na.Ka. No.A1/217/2023 dated 20.11.2023 pending disposal of the above writ petition and quash the same as illegal and arbitrary.

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W.P. (MD) No.5160 of 2024 filed under Article 226 of the Constitution of India praying this Court to issue a writ of certiorarified mandamus calling for the records of the 1st respondent comprising the declaration in Rc.No.36/2020/A2/CVG dated 15.09.2023 and quash the same as illegal and arbitrary and direct the 1st respondent to rectify the defect/error in declaring 1.60.75 hectares of lands in Survey No.568/3B, 568/4 & 568/5 vide Serial No.142, 143 & 144.

W.P. (MD) No.18824 of 2024 filed under Article 226 of the Constitution of India praying this Court to issue a writ of certiorari to call for the records relating to impugned G.O. Ms. No.169, Water Resources (K1) Department, dated 26.11.2021 as published by the 4th respondent in the Karur District Gazette vide No.16 dated 08.03.2022 issued in Form IV u/s 13 (1) of Right to Fair Compensation and Transparency in Land Acquisition Rehabilitation and Resettlement Act, 2013 and the consequential proceedings Na.Ka. No.A1/250/2023/Ka.Vai.Ku, dated 04.12.2023 and quash the same as illegal and arbitrary.

W.P. (MD) No.20281 of 2024 filed under Article 226 of the Constitution of India praying this Court to issue a writ of certiorari to call for the records relating to the impugned Karur District Gazette Notification dated 29.12.2021 on the file of the 1st respondent and quash the same.

For Petitioners : Mr. V.R.Shanmuganathan in WP (MD) Nos.21648/2023, 2871 & 18824/2024
Mr. Prabhu Rajadurai in WP (MD) No.20281/2024
Mr. Arvind Pandian, SC for Mr.S.Parthasarathy in WP (MD)

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No.5160/2024

For Respondents : Mr. B.Saravanan, AAG, Assisted by Mr.G.Mohankumar, AGP for RR-3 to 5 in WP (MD) No.21648/2023, for RR-1 to 4 in WP (MD) No.5160 & 20281/2024, for RR-3 to 6 in WP (MD) No.2871 & 18824/2024

Mr. AR.L.Sundaresan, ASG, Assisted by Mr.Karthikeya Venkatachalapathy, DSG for RR-1 & 2 in WP 2871 & 18824/2024

COMMON ORDER

M.DHANDAPANI, J.

Assailing the impugned notifications in and by which the lands of the petitioners are sought to be acquired by rejecting their objections for the purpose of formation of a canal from Cauvery (Kattalai Barrage) to South Vellar as part of the Mahanadi – Godavari – Krishna – Pennar – Palar – Cauvery – Vaigai – Gundar River Linking Canal proposal, the present writ petitions have been filed.

2. The writ petitions have been filed under the caption 'Public Interest Litigation' by the petitioner notwithstanding the fact that the petitioners are the affected party in respect of the acquisition proposal initiated by the State for the purpose of formation of the canal and since the entire stretch of persons, owning

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lands in the said stretch are affected, the writ petitions have been filed in public interest.

3. It is the case of the petitioners that Cauvery (Kattalai) - South Vellar Flood Carrier Canal Project (for short 'CSV FCC') was envisioned by the Central Government for the diversion of Cauvery waters from Kattalai Barrage in Karur District to South Vellar River in Pudukkottai District. It is the further case of the petitioners that the said project was approved by the State of Tamil Nadu vide G.O. (Ms) No.280. PWD (Works) (1.Spl.2) Department, dated 10.11.2020. It is their further case that the canal traverses through Karur, Tiruchirappalli and Pudukkottai Districts. The petitioners further aver that the Government of India has proposed the Mahanadi Godavari - Krishna - Pennar - Palar Cauvery - Vaigai - Gundar River Linking Canal Proposal and towards its fulfilment, the final link of this project is the Cauvery - Vaigai - Gundar Link Canal Project Proposal (for short 'CVG LCP'). It is further averred that CSV FCC is claimed to be part of CVG LCP.

4. It is the further averment of the petitioners that they are not opposing the scheme for the transfer of flood waters from Cauvery to the drought prone areas of Karur, Thiruchirappalli and Pudukkottai Districts, but their grievance is

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only with regard to the acquisition of the lands, which has been taken up by the 4th respondent by issuing notifications on various dates, which, as averred by the petitioners, is not approved legally and that alternate methods for execution of the project, which involve less time and money, have not been examined before issuing the said notifications.

5. It is the further averment of the petitioners that the riparian rights of present users of cauvery water are not safeguarded and that no provision of funds for the implementation of the Project has been made in the budgets of the Government of Tamil Nadu. It is further averred that a suit against the scheme for which land is being acquired is pending in the Supreme Court and that the extent of land being acquired is in excess of the actual requirement for the canal. It is the averment of the petitioners that at present, the Project cannot be implemented and the proposed acquisition of land at this point of time is not necessary.

6. It is the further averment of the petitioners that they own various extent of lands in the proposed area in which the land acquisition is being carried out. It is further averred that preliminary Notification u/s 11(1) of Right to Fair

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Compensation and Transparency in Land Acquisition Rehabilitation and Resettlement Act 2013 (for short 'the Act') and Rule 13(1) and Form IV of the Tamil Nadu Right to Fair Compensation and Transparency in Land Acquisition Rehabilitation and Resettlement Rules 2017 (for short 'the Rules') in Form IV for various lands including the lands of the petitioners herein was issued by the District Collector, Karur, vide Na. Ka. No. A1/270/2022 dated 07.03.2022.

7. It is further averred that notice have been received by the petitioners in Form V in accordance with Rule 14(1) of the Rules and Section 11 (1) of the Act calling for their objections with regard to the acquisition to which the petitioners and the said notice was also issued u/s 15(2) of the said Act in the newspapers to which the petitioners have submitted their objections. However, without properly considering the said objections in proper perspective, by proceedings dated 17.6.2022, the District Collector, Karur, rejected the said objections and issued orders u/s 15(3) of the Act, aggrieved by which the petitioners approached the respondents by filing necessary representation, but since there has been n no reply nor any action, left without any other efficacious alternative remedy, the present writ petitions have been filed by the petitioners.

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8. Learned senior counsel and the learned counsel appearing for the respective petitioners submitted that the clearance of the Government of India for implementation of the project for which land is acquired is not available and in the absence of any approval of the Government of India, the notification itself *sans* any validity. Therefore, the acquisition on the basis of the notification, which does not have any approval is wholly unsustainable and illegal.

9. It is the further submission of the respective learned counsel that in-principle approval has been sought for by the State from the Central Government with regard to which no approval is yet to be granted inspite of the fact that such approval was sought for on 16.8.2019. The length of time during which approval has not been granted would clearly show that the Central Government is not inclined to go with the proposal and, therefore, the land acquisition for the same at the instance of the State is wholly erroneous and arbitrary.

10. It is the further submission of the learned counsel that the acquisition is for the project of laying a canal from Cauvery (Kattalai) – South Vellar River, which is part of the national project proposal for which approval of National Water Development Authority (for short 'NDWA') is mandatory. Without such

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approval, no project can be implemented in the CVG LCP link scheme. When no diversion of water could be taken up from that link, the act of the State in implementing the said acquisition would be nothing but a wasteful exercise.

11. It is the further submission of the learned counsel that the project cost is estimated at Rs.7677 crores, which is to be spent from the tax payers money and without there being any approval of the Central Government and the NDWA, of acquisition of vast extent of lands is nothing but an act of putting the cart before the horse by wasting the economic resources of the State.

12. It is the further submission of the learned counsel that the Act prescribes various procedures in the decision making process after issue of preliminary notification u/s 11 (1) of the Act, more particularly with reference to Section 8 (1) which provides for the potential benefits to outweigh the social cost and that minimum area of land should be acquired; 8 (2), which provides that there should be minimum displacement of people and that the disturbance to infrastructure should be minimum; 8 (3) which provides for wide publicity to given to the people who would be affected; 11 (5) relating to updation of land records before issuance of Declaration u/s 19; Section 12 relating to giving notice

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to the land owner atleast 60 days prior to undertaking survey, etc. However, all those procedures have not been complied with, which vitiates the acquisition.

13. It is the further submission of the learned counsel that the mandatory procedures contemplated u/s 30 of the Act have not been given a go-by. Further, the fallacies in G.O. Ms. No.280 expose the haste in the implementation of the project as the potential benefit has not been assessed with regard to the social cost and the adverse social impact that it would have on the society. Further the number of farmers, who would be losing their lands and be deprived of their livelihood, which would be to the extent of about 1320.332 hectares has not been considered in the social impact report.

14. It is the further submission of the learned counsel that social impact assessment has not been taken up and under the guise of irrigation project, for which environment impact assessment is sufficient, the social impact assessment is given a go-by. In the absence of social impact assessment report, mere environment impact assessment would not be suffice so long as the respondent has not shown any such law, which is applicable, which would not require the social impact report.

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15. It is the further submission of the learned counsel that along with their objections to the land acquisition, an alternate and better method, drafted by a retired Chief Engineer (PWD) has been submitted to the District Collector, but the objections, though have been negatived, however, there is no material evidencing the fact as to whether the alternate method was gone into, while rejecting the objections of the petitioners.

16. Pointing out the very many issues in the culmination of the project, it is the submission of the learned counsel that the project has encountered very many difficulties and the finality of the project itself is at stake as many States, which have a stake in the connecting of the various rivers have raised very many issues, which would have a lasting impact in the implementation of the project and for the purpose of implementing the scheme, the project is being rechristened under a different name as Cauvery – Vaigai – Gundaru Flood Carrier Canal (for short 'CVG FCC') Scheme and there is no change in the design, size and alignment of the CVG Link Canal as proposed by the NWDA and, therefore, for all intent and purposes, the approval of NWDA is very much required for proceeding

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further with the said proposal, as the link canal now proposed forms part and parcel of the major CVG LCP plan.

17. It is the further submission of the learned counsel that the preliminary notification issued by the 4th respondent u/s 11 (1) of the Act also clearly showcases that the lands are sought to be acquired for the CVG Link Canal and that being the case, the mandatory approval of NWDA is very much required for proceeding further with the plan. Further, the estimate of land acquisition is to the tune of about Rs.7000 Crores, which amount has not been shown in any of the annual budgets of the State Government. Though the State Government claims that funds for the said project is to be obtained from NABARD, however, the information sourced through RTI from NABARD reveals that no application for any funding for CVG FCC has been received from the State Government.

18. Exhaustive contentions in addition to the above, with regard to the feasibility and the time to be taken for the project to be implemented were highlighted, the land acquisition at the behest of the respondents is assailed in a nutshell under the following heads :-

i) The project does not have the requisite approvals for execution, and therefore, the land acquisition is bad.

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ii) The present design of the project would hurt the riparian rights of the existing farmers on Cauvery and its canals.

iii) More efficient and more economical alternatives have not been examined.

iv) The quantity of water to be handled is likely to be halved, and therefore, the present size of the canal and the extent of land to be acquired would be much less.

v) No funding for execution of the project has been provided or arranged for.

vi) The execution date of the project is indeterminate; the land acquisition is premature.

vii) Govt has not followed the procedure laid down in the Act.

viii) A petition by Government of Karnataka against this very project is pending in the Supreme Court.

19. Basing the case on the aforesaid submissions, learned counsel for the petitioners pray for quashing the impugned land acquisition proceedings.

20. Per contra, learned Addl. Advocate General appearing for the respondents/State submitted that the contentions advanced on behalf of the petitioners is wholly flawed, as the State has taken into consideration all the

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factors and has proceeded with the land acquisition proceedings, which will not impinge on the rights of the farmers in the said area.

21. It is the further submission of the learned Addl. Advocate General that approval is mandatory from NWDA only when it is with regard to any additions/modifications in the project, viz., CVG LCP. However, in the present case, the land acquisition is for construction of a canal, viz., CVG FCC, which is a State project and it does not in any manner alter or modify the project taken up by NWDA and, therefore, approval/expert opinion of NWDA is not required. Therefore, there is no illegality or unreasonableness in the action of the respondents in proceeding with the land acquisition.

22. It is the further submission of the learned Addl. Advocate General that the petitioners cannot presume that a project is premature, as even the land acquisition takes a long time. Further, it is the submission that the environmental assessment authority has already granted permission for the project and the project being irrigation project, the permission/approval of the State is not mandatory or required. Therefore, the non-obtainment of permission from the State would not hamper the land acquisition process.

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23. It is the further submission of the learned Addl. Advocate that though it is alleged that there are very many procedural violations with respect to the provisions of the Act, however, it is the admitted case of the parties that the land acquisition has been taken up to its logical conclusion by the award being passed and the compensation being deposited before the Court and, therefore, the plea of the petitioners that there are procedural violations which vitiates the land acquisition is wholly untenable and unsustainable.

24. It is the further submission of the learned Addl. Advocate General that what is sought to be constructed right now, before the entire project is conceptualized, is a canal, which is to harvest the water resources and allow it to flow to the other parts of Tamil Nadu and putting up the said canal before conceptualization of the project cannot be held to be bad or illegal so long as the viability of the project still exists. Merely because the project is getting delayed due to certain issues raised by the neighbouring States cannot be the basis to claim that the project has been shelved by the Central Government or that its viability is at stake. Therefore, it is submitted that the contentions advanced on behalf of the petitioners are preposterous.

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25. It is the further submission of the learned Addl. Advocate General that merely because a case relating to utilisation of the flood water is pending before the Supreme Court at the instance of the State of Karnataka cannot be the basis to come to the conclusion that the project cannot be continued, as even it is the specific case of the petitioners that the completion of the project would take sometime by which time, the issues which are raised before the Apex Court would be concluded. Therefore, the land acquisition for the purpose of implementing the project cannot be said to be erroneous or illegal and the contentions advanced on behalf of the petitioners are over-ambitious and deserves to be dismissed and, accordingly, prays for dismissal of the present petitions.

26. Learned Addl. Solicitor General appearing on behalf of the Central Government and NWDA submitted that a detailed project report relating to the link project has been circulated to the States for their comments/views and the viability towards linking is being taken up by NWDA. Though the project is at a nascent stage, it is submitted that upon obtaining the views and comments of the various States, necessary action would be taken on the project.

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27. It is the further submission of the learned Addl. Solicitor General that insofar as Cauvery (Kattalai – South Vellar Flood Carrier Canal Project (CSV FCC) is concerned, the same has been formulated by the Government of Tamil Nadu and being implemented on their own and the said project does not come under the purview of NWDA as the diversion of the flood waters of Cauvery river through the CVG FCC link project is entirely different from the scope of NWDA proposal and that NWDA has no role in the formulation or implementation of the project and it purely pertains to the Government of Tamil Nadu and, therefore, no permission is required to be given by NWDA.

28. This Court gave its careful consideration to the submissions advanced on behalf of the parties and perused the materials available on record.

29. On an overall conspectus of the case, three contentions cover all the following issues that have been raised in the present petitions, which, according to the petitioners, vitiates the acquisition :-

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i) Non-obtainment of expert opinion of NWDA vitiates the construction of the canal sought to be implemented by the respondents by acquiring the lands;

ii) Only environmental impact assessment has been obtained while the social impact assessment has not been done and published by the State with respect to the displacement of the farmers and others in the area of land acquisition; and

iii) Procedural violations against the provisions of the Act in the acquisition of lands.

30. There could be no quarrel with the fact that interlinking of rivers is one of the pivotal tasks being undertaken so as to provide water for each and every activity, of which irrigation takes primacy and in that view of the matter, the flooding in the various rivers have been taken into consideration to arrive at the project which aims at harnessing the flood water for better utilisation of the same for welfare of humanity. The present project, which is under the aegis of NWDA, is being taken up to better utilise the water in the various rivers from North to South and towards the same, any action being taken by any State, which interferes with the viability of the project would require the approval of NWDA

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and to this extent there is no dispute that NWDA holds the cards with regard to the project and without its approval, no State can take any action, which will impact the project. Though the outcome and implementation of the project by NWDA would consume a lot of time due to administrative necessities and State interference, nevertheless, any interference with the project by any State would have to have the concurrence of the NWDA, which is a mandatory prescription, which cannot be by-passed by any State.

31. However, that does not mean that States cannot utilise the water resources in the rivers flowing in the respective States for the welfare of its masses and divert the excess water for better water management to different parts of the State, thereby fulfilling the water needs of the region, where water scarcity is at large, which hampers irrigation and farming. In the present case, the excess water through floods in the Cauvery river is sought to be utilised by the State of Tamil Nadu to satisfy the necessities of the water starved cities/towns.

32. There is no quarrel with the fact that where any project, which is taken up by a State, interferes with the project being taken up by NWDA, necessarily

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mandatory approval of NWDA is required, which is not disputed. However, whether the construction of a Flood Carrier Canal Project is an interference with the implementation of the project taken up by NWDA is a question that requires to be looked into. In this regard, a counter affidavit has been filed on behalf of NWDA, wherein, NWDA has made the following submission :-

> *"5. I further submit that the Cauvery (Kattalai) - South Vellar Flood Carrier Canal Project (CSV FCC) was formulated by Govt. of Tamil Nadu and being implemented on their own and are under their purview. The planning of Govt of Tamil Nadu to divert the flood waters of Cauvery River through the CVG FCC link project is entirely different from the scope of NWDA proposal. NWDA has no role in formulation & implementation of the said project."*

33. From the above stand of NWDA, it is clear that for the purpose of implementing the flood canal project no approval of NWDA is required as the said project has been formulated by the Government of Tamil Nadu and is being implemented on their own and it does not fall under the purview of NWDA and further the Government of Tamil Nadu wants to divert the flood waters of Cauvery river through the CVG FCC link project, which is entirely different from the scope of NWDA project in which NWDA has no role in formulation or implementation of the said project.

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34. From the above stand of NWDA, it is unambiguously clear that the project, which is sought to be implemented by the respondents is not one connected with NWDA, but it is a separate and different project outside the scope of the project being executed by NWDA for which no approval of NWDA is required. Therefore, not only the contention advanced with regard to mandatory approval of NWDA is not necessary, but the said contention is wholly misconceived and the non-obtainment of approval of NWDA does not in any manner vitiate the project and, therefore, the said contention deserves to be rejected.

35. The second contention advanced on behalf of the petitioners relate to non-obtainment of social impact assessment report, which, according to the petitioners are very material and the mere obtainment of environmental impact assessment alone would not suffice.

36. The petitioners place emphasis upon Section of the Act to drive home their point that while placing the matter the Committee for Environmental Impact Assessment, it is necessary that the report relating to Social Impact

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Assessment should also be placed before the said committee so as to take a holistic view with regard to the continuance of the project.

37. It is the well accepted legal proposition that where a project impacts the environment, necessarily environment clearance is of utmost importance and in the present case, the acquisition of land, which would lead to displacement of individuals, in normal circumstances, social impact assessment requires to be carried out to find out whether it is not affecting the social fabric of the area. However, in the affidavit, the petitioners themselves have averred that social impact assessment report is placed at the time of environmental impact assessment, but in cases where the project relates to irrigation, while environmental impact assessment is mandatory, social impact assessment is not necessary.

38. In the present case, the project, which is a pan-India project, relates to inter-linking of rivers to utilise the water resources, which is not only for irrigation purposes, but for the all purposes. The enormity of the project is even known to the petitioners, which is evident from the affidavit filed in support of their petitions, which clearly shows that environmental impact assessment is

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mandatory. Considering the scope and extent of the project, it would be clear that social impact assessment is not necessary as the benefit of the public at large has to be looked into rather than the persons, who would be affected by the said project, which fact has also been admitted by the petitioners. Such being the case, the project which involves irrigation as well in addition to other concerns relating to tapping and utilisation of water, there is no requirement for a social impact assessment to be made while acquiring the lands for the project.

39. Though the petitioners contend that only to circumvent the non-submission of social impact assessment, reference has been made to Section 6 (2) of the Act and it is submitted that it is applicable only where under some law it is shown that environmental impact assessment alone is sufficient, then social impact assessment may not be resorted to. In this regard, it is the stand of the respondents that where the project is for irrigation purposes, social impact assessment report is not necessary and in this regard Section 8 (2) of the Act has been pointed out and contended that the same has been published even in the preliminary notification in Form IV. In this regard, it is to be pointed out, as aforestated, that the project involves harnessing the water resources flowing in the rivers in the country for best utilisation and usage, which includes irrigation

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as well, which is not in dispute and such being the case, there would be a full-fledged environmental impact assessment study, which has been undertaken and which is not disputed by the petitioners and, therefore, there is no necessity for submitting any social impact assessment report before the environmental impact assessment committee, moreso, when the said aspect has already been published in the preliminary notification, as mandated under the Act and, therefore, the contention in this regard deserves negation.

40. The last of the submissions relates to procedural violations with regard to various provisions of the Act in the acquisition of lands. Many provisions have been pointed out by the petitioners to contend that the said provisions are only to safeguard the interests of the land owners from wrongful acquisition, which have to be followed, but the said provisions have been given a go-by, which vitiates the acquisition.

41. In this regard, a perusal of the counter filed by the respondents reveal the process undertaken for complying with the provisions of the Act and for better appreciation, the relevant portion is quoted hereunder :-

"6. It is submitted that the writ petitioner herein Tmt.Anusha Suresh Kumar Adithiya and the other pattadar

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namely Tmt.B.Neelaveni submitted their written objections through to the acquisition of their land on 02.05.2022. The said objection petitions were forwarded to the requisitioning authority namely the Executive Engineer. Water Resources Organisation, Special Division Kulithalai for their remarks and the remarks were obtained vide his office Letter No.88/u.Po/Ko/Manukkal/2022 dated 15.06.2022. After careful consideration of the objections filed by the petitioner herein with reference to the connected records of enquiry, the 4th respondent in the Authority of Appropriate Government herein has passed a detailed order under Section 15(3) of the Act 30 of 2013 vide his proceedings in Na.Ka.No.A1/717/2022 dated 17.06.2022. Agitating the same, the petitioner herein has filed this writ petition.

7. It is submitted that upon the publication of the preliminary notification under Sub Section (1) of Section 11 by the District Collector, the Administrator for Rehabilitation and Resettlement namely the Revenue Divisional Officer. Kulithalai has conducted a survey and census of the affected families and submitted the draft Rehabilitation and Resettlement Scheme for the project under Rule 15(2) of the RFCTLARR rules 2017 vide his proceedings in R.C.No.A2/3356/2022 dated 19.07.2022. The said draft Rehabilitation and Resettlement Administrator's notification dated 19.07.2022 was duly published under Section 16(4) of the Act 30/2013 in Karur District Gazette No.53 (English) and No.66 (Tamil) on 20.07.2022 and the same was also published in the Dinakaran

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Tamil Daily and also in the English Daily "The Times of India" on 22.07.2022.

8. It is submitted that the 4th respondent herein vide his proceedings in A1/862/2022 dated 23.08.2022 submitted the scheme report to the Commissioner of Rehabilitation and Resettlement/Commissioner of Land Administration, Chennai for approval of the scheme and the said Draft Scheme was approved by the commissioner of Rehabilitation and Resettlement/commissioner of Land Administration Chennai vide his proceeding sin H1/3142340/2022 dated 06.10.2022. Accordingly the declaration under Section 19(1) of the Act was notified by the 4th respondent vide his proceedings dated 08.02.2023 in Na.Ka.No.A1/52/2023 and the same was published in the English Daily "The Hindu" and also in the Tamil Daily "Dhinakaran" on 16.02.2023 and also duly published in the various public officers vide this office public notice in Na.Ka. No.A1/52/2023 dated 20.02.2023 under Section 21(1) of the Act.

9. It is submitted that land owners/ interested persons including the writ petitioner herein whose lands are declared under acquisition were directed to appear for Award Enquiry on 12.04.2023 at 11.00 am., before this respondent at the office of the Special Tahsildar (Land Acquisition) Unit-III, Kulithalai along with the documentary evidences to prove their title over the land 16111 under acquisition. It is submitted that the said award enquiry notice in Na.Ka.No.A1/52/2023 dated bts 01.03.2023 was duly served on the writ petitioner and another named Tmt. Neelaveni by Register Post with

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Acknowledgement on behalf of the petitioner, one and submitted records and sought for adjournment to Thiru. Suruli appeared for Award enquiry on 12.04.2023 produce additional documents. On 12.09.2023, on behalf of the petitioner. Thiru. Suruli appeared for Award Enquiry and submitted documents to prove their title, in respect of the lands under acquisition in S.No.957A/18A (7.46.20 Hect) and S.No.957A/18E (1.22.85 Hect) in Nangavaram South I Village, Kulithalai Taluk, Karur District. He has also submitted the details of Bank account and other relevant documents to prove their ownership over the lands under the acquisition. In Nangavaram South I Village, through Private Negotiation, to an extent of 7.05.64 Ha. has been registered to requesting body by land owners and compensation has been paid to them. The Award is proposed to be passed on 16.10.2023 in respect of the remaining lands to an extent of 20.18.46 Hectares of land in Nangavaram South-1 Village Kulithalai Taluk, Karur District including the lands of the writ petitioner herein. At this stage, the petitioner has filed this writ petition challenging the notification under Section 13(1) in IV of the Act 30/2013 and the consequential proceedings of the 4th respondent dated 17.06.2022 which is not maintainable either in law or on facts and hence it may be rejected summarily as devoid of merits.

10. It is submitted that the averments of the petitioner made in Paras (1) to (4) of the affidavit are denied as false and exaggerated in nature. It is submitted that the Government in their G.O.(Pt). No.115 Public Works Department dated 03.04.2020 and in G.O.(Ms).No.169 Water Resource

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Department dated 26.11.2021 have accorded administrative sanction to acquire the lands in various villages situated in Krishnarayapuram and Kulithalai Taluk of Karur District under the provisions of Act 30 of 2013 for the implementation of Cauvery-Vaigai- Gunder interlinking canal project. The said project of "Formation of Flood Carrier Canal from Cauvery (Kattalai) to South Vellar River to divert the flood water for sustaining drinking water needs and recharging ground water in the drought prone area of Karur. Trichy and Pudukottai District which is Phase-I of Cauvery (Kattalai)-Vaigai- Gundar flood carrier project. As per the land plan schedule of the requisition body, an extent of 427.81.21 Hectares of patta lands are to be acquired in 17 Villages in two taluks of Karur District for the formation of the canal running 48 Kms length. It is submitted that, For this project so far, the lands to an extent of 236.36.83 Hectares were update acquired through Private Negotiation and the compensation amount of Rs.192.45 Crores have been disbursed to the land owners of whose lands were acquired. A sum of Rs.131.00 Crores fund har been allotted for the Financial year 2022-2023 for Land acquisition. And for the Financial year 2023-2024. Rs.218.00 Crores fund has been allotted by the Government for land acquisition. The Award for the Nanagavaram South-1 Village wherein the petitioner's lands are under Acquisition is to be passed on 16.10.2023. Hence the contentions of the petitioner do not deserve any consideration."

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42. The manner in which the acquisition has proceeded has been spelt out in the counter affidavit, which has been extracted supra. From the contents of the said counter, which is filed in the lead case in W.P. (MD) No.21648/2023, which is not in dispute, the procedures contemplated for acquisition of land by the Government has been spelt out, which shows that the procedures have been followed. Further, it also transpires that pursuant to the acquisition proceedings, the compensation for the lands so acquired was computed and an award had come to be passed. It is further seen from the counter that various sums towards the compensation payable for the land so acquired were specifically allotted in the respective financial years in the budget for payment of compensation.

43. It is not the case of the petitioners that the procedure, as has been spelt out in the counter, has not been followed by the respondents and that the enquiry has not been conducted. The case of the petitioners is only to the extent that the manner in which consideration of their objections have been made is not proper. It is to be pointed out that the petitioners have partaken in the enquiry process, which has culminated into the passing of the award. The petitioners having partaken in the enquiry process and at no point of time having challenged

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the acquisition proceedings, under the guise of certain procedural flaws, which procedures are alleged to have not been followed, cannot come before this Court and claim that the acquisition process is bad at a posterior point of time and at the same time also submit that the acquisition process is premature, notwithstanding the fact that NWDA is seized of the matter and steps are being taken for inter-linking of the rivers. Though there may be certain difficulties in the form of State objections, as placed before this Court, that would not in any way affect the process as a whole and the parallel process in which the project is sought to be taken up by the State cannot be put in issue, as the manner in which the project is to be taken up is within the domain of the State authorities.

44. In the present case, the procedural violations, which are alleged by the petitioners, cannot be the basis for this court to set at naught the land acquisition proceedings on the contentions advanced, moreso, when the project is in public interest as the interest of the larger public would predominantly prevail over individual interest. Therefore, the contention relating to procedural violations also deserve to be rejected.

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45. On a holistic consideration of the case and also the interest of the public involved in this matter, the contentions advanced by the petitioners does not deserve acceptance and the same requires to be rejected and, accordingly, all the contentions fail and the writ petitions are liable to be dismissed.

46. Accordingly, all the writ petitions fail and they are dismissed. Consequently, connected miscellaneous petitions are closed. There shall be no order as to costs.

(M.D.I.J.) (N.D.K.J.)
09.10.2026

Index : Yes / No

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To

1. The Director General
   National Water Development Agency
   18-20, Community Centre, Saket
   New Delhi 110 017.

2. The Prl. Secretary to Government
   Public Works Department (Water Resources
   Organisation), Govt. Of Tamil Nadu
   Fort St. George, Chennai 600 009.

3. The District Collector
   Karur District, Karur.

4. The Special District Revenue Officer
   (Land Acquisition)
   CVG Link Canal Project
   Karur.

5. The Additional Secretary
   Revenue, Land and Disaster
   Management Department
   Govt. Tamilnadu, Chennai.

6. The Commissioner of Land Administration
   Commissionerate of Land Administration
   Chepauk, Chennai.

6. District Collector
   Pudukottai District
   Pudukottai.

7. The Executive Engineer
   Water Resources Department/WRO
   Special Project Division (CVG Link Project)
   Pudukottai.

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8. The Special District Revenue Officer (Land Acquisition)
   Cauvery-Vaigai-Gundar Link Project
   District Collectorate
   Pudukottai, Pudukottai District.

9. The Special Thasildar (Land Acquisition)
   Unit-2, Cauvery-Vaigai-Gundar Link Project
   Keeranur, Pudukottai District.

10. The Chief Engineer
    National Water Development Agency (NWDA)
    18-20, Community Centre
    Government of India
    Saket, New Delhi – 110 017.

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M.DHANDAPANI, J.
AND
N.DILIPKUMAR, J.

GLN

PRE-DELIVERY ORDER IN
W.P. NOS.21648 OF 2023
W.P. NOS. 2871, 5160,
18824 & 20281 OF 2024

Pronounced on
09.10.2026

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